

25VECV07386 25VECV07386

County: los-angeles

Division: Civil Law and Motion

Department: NWI

Hearing date: 2026-07-15

Motion: SPECIALLY APPEARING DEFENDANTS CHRISTINA OLACIO AND FELIX DOMINGUEZ'S MOTION TO QUASH SERVICE OF SUMMONS AND COMPLAINT

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Case Number: 25VECV07386 Hearing Date: July 15, 2026 Dept: NWI

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

COUNTY

OF LOS ANGELES

NICHOLE HEUMANN-MOELLER;

Plaintiff,

vs.

CHRISTINA OLACIO; PATH HOUSING AUTHORITY OF LOS ANGELES; AMERICAN GLOBAL SECURITY; FELIX DOMINGUEZ,

Defendants.

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CASE

NO: 25VECV07386

[TENTATIVE]

ORDER RE: SPECIALLY APPEARING DEFENDANTS CHRISTINA OLACIO AND FELIX

DOMINGUEZ'S MOTION TO QUASH SERVICE OF SUMMONS AND COMPLAINT

Dept.

I

HEARING

DATE: JULY 15, 2026

TIME:

8:30 A.M.

COMPLAINT

FILED: DECEMBER 30, 2025

TRIAL

DATE: NONE

I.

BACKGROUND

On December 30, 2025, Plaintiff Nichole Heumann-Moeller ("Plaintiff") filed a complaint against Defendants Christina Olacio ("Olacio"), PATH Housing Authority of Los Angeles ("PATH"), American Global Security, and Felix Dominguez ("Dominguez") alleging seven causes of action: (1) breach of the implied warranty of habitability; (2) breach of covenant of quiet enjoyment; (3) retaliation; (4) negligent security/negligent supervision; (5) intrusion upon seclusion; (6) intentional infliction of emotional distress; and (7) negligent infliction of emotional distress.

On May 8, 2026, Defendants Olacio and Dominguez (hereinafter "Movants") filed the instant motion to quash service of summons and complaint.

To date, the motion remains unopposed.

II.

LEGAL STANDARD

A court lacks jurisdiction over a party if there has not been proper service of process. (Ruttenberg

v. Ruttenberg (1997) 53 Cal.App.4th 801, 808.) “When a motion to quash is properly brought, the burden of proof is placed upon the plaintiff to establish the facts of jurisdiction by a preponderance of the evidence.” (Aquila, Inc. v. Sup. Ct. (2007) 148 Cal.App.4th 556, 568.) This includes facts “requisite to an effective service.” (Coulston v. Cooper (1996) 245 Cal.App.2d 866, 868.)

“[C]ompliance with the statutory procedures for service of process is essential to establish personal jurisdiction. [Citation.]” (Dill v. Berquist Construction Co. (1994) 24 Cal.App.4th 1426, 1444.) “[T]he filing of a proof of service creates a rebuttable presumption that the service was proper” but only if it “complies with the statutory requirements regarding such proofs.” (Ibid. at 1441-1442.)

III.

DISCUSSION

Movants

argue that “[i]n or around March 2026, an individual, who [Movants] were

unfamiliar with, approached [Movants] each, separately while they were working at the Subject Residence and proceeded to throw documents at them . . . The individual then abruptly departed the Subject Residence . . . This individual did not identify themselves or explain what the documents were regarding . . . To date, [Movants] have not been personally served with summons and Plaintiff’s Complaint for damages.” (Motion at 3:8-20.) Notably, as Movants admit, “Plaintiff has not filed a Proof of Service with this Court . . .” (Ibid.) Accordingly, the Court cannot evaluate the proof of service of summons and, furthermore, there is no “service” to quash.

IV.

CONCLUSION

Based

on the foregoing, specially appearing Defendants’ motion to quash service of summons and complaint is DENIED without prejudice as moot.

Moving

parties to give notice.

Dated:

July 15, 2026

Hon. Karen Moskowitz

Judge of the Superior Court